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General terms and conditions „N26 current account“

(Version 3.0, Date: 19.06.2026)

1. Scope of application

1.1

These General Terms and Conditions ("AGB") are applicable for all the banking services of N26 Bank SE ("N26", "we"), which you ("End user", "You") can use via the application of the mobile App named "N26" ("App") or via the online interface provided by N26 AG that can be accessed under <https://app.n26.com> ("Online Interface"). Additionally, the following conditions are also applicable, insofar as they do not contradict the provisions of these General Terms and Conditions.

- Basic pre-contractual information
- Depositor information
- General Business Conditions - Basic Rules Governing the Relationship Between the Customer and the Bank
- Terms and Conditions for Credit Transfers
- Terms and Conditions for eBanking
- General Terms and Conditions for Payments by Direct Debit under the SEPA Core Direct Debit Scheme
- Terms and Conditions for Private and Business MasterCard Debit Cards
- Special Conditions for Digital Account Statements
- Price list

1.2

The supplementary terms of use, which you can view below are applicable for the use of the App and the Online Interface ("End Customer interfaces").

2. Object of service

2.1

The object of service is the maintenance of a current account and the provision of a virtual N26 MasterCard ("Account"). You can operate and manage the account via the end Customer interfaces. The prerequisite is a smartphone that is linked to the account, which fulfils the respective minimum requirements for the operating system (iOS/Android) and our N26 app version. (Currently supported versions and further information can be found in the N26 Support Center). Due to security reasons we are forced to discontinue our service for any out-dated versions of the respective operating system and out-dated versions of the N26 app version. We will

notify you eight weeks before we stop supporting a version of the respective operating system and invite you to update your software during that period of time.

The current account contract includes the following services in detail:

- Account Management
- Payments at ATM's
- Transfers
- Standing Orders/Debit Orders
- Debit Notes (direct debits are excluded in the Customer order)
- Virtual MasterCard

2.2

The account is used for the processing of payment transactions and the processing of card revenues from the linked (virtual) MasterCard.

2.3

The credit balance on the account is payable on a daily basis. The account is managed on a current account ("open account") basis. The account is managed as credit account. Please note the overdraft facility on the basis of staggered synchronisation processes (Clause 11). Furthermore, an overdraft credit contract subject to your credit rating can also be concluded with us separately.

2.4

The transaction limit stipulated for the cash service is applicable within your credit limit that you may access via the N26 Support Center. As a rule, changes to the applicable limit will be agreed separately with you.

2.5

You will not receive any interest on the account balance.

2.6

The CASH26 feature is described under Clause 7.4.

2.7

The N26 Premium Memberships N26 Smart, N26 Go and N26 Metal are described under Clause 7.6.

2.8

The N26 Business feature is described under Clause 7.7.

2.9

The N26 Premium Memberships N26 Business Smart, Business Go and Business Metal are described under Clause 7.8.

2.10

The Top Up Feature by Stripe is described under Clause 7.9.

2.11

The Automatic Billing Program by Mastercard is described under Clause 7.10.

2.12

What is considered to be a "Premium Member" is described under Clause 7.11.

3. Account opening

3.1

You can open an account, if you are at least 18 years old, have a smartphone, on which the Apps mentioned under Clause 3.2 can be installed and used and you reside in one of the countries specified on the N26 Website and you do not yet opened an account with us. The opening of multiple accounts is not permitted. The opening of an account is only permissible for a natural person. If any identifiable business turnover is transacted via the private current account – with the exception of the regulation in Clause 7.8 - we have the right to terminate the account with an appropriate notice period.

3.2

If you would like to open an account via the App, you must first download it. (Please find information on this in the N26 Support Center)

3.3

To open an account via online interface, please visit the website: <https://www.n26.com>.

3.4

After opening the installed App or the online interface, a registration process begins, during which you can electronically request the opening of an account.

3.5

By submitting an electronic account opening application to N26, you are submitting a binding offer to conclude for a contract for the provision of an account with the functions described under Clause 2 of these General Terms and Conditions.

4. Identity verification, conclusion of contract

4.1

We are legally obliged to verify your identity prior to the opening of an account. You have the following options:

Identification via PostIdent process by the employees of Deutsche Post AG ("Deutsche Post") (please find more information on this in the N26 Support Center)

Video chat based identification by the employees of IDnow GmbH, Fuerstenstrasse 15, 80333 Munich ("IDnow"), (please find more information on this in the N26 Support Center)

Personal identification checks may be carried out by our employees in exceptional cases.

4.2

A contract for the provision of an account with the functions described under Clause 2 of these General Terms and Conditions is concluded when we confirm that we have set up an account for you ("Contract"), either via SMS, e-mail or in any other mode of direct communication.

5. Withdrawal policy

Withdrawal Policy Instruction

Section 1

Right of Withdrawal

You may withdraw from your contract declaration **within 14 days without statement of reasons by means of a clear declaration to that effect**. This term starts upon the conclusion of the contract and after you **have received** the contractual provisions, including the General Terms and Conditions, and **all the information listed below in Section 2** on a durable data medium (e.g., by mail, fax, or by e-mail). **In order to comply with the withdrawal deadline, the timely dispatch of the notice of withdrawal is sufficient**, provided that this notice is issued on a durable data medium.

The withdrawal notice must be addressed to:

N26 Bank SE
Voltairestr. 8
10179 Berlin
Germany

Email: terms@n26.com

You can also exercise your right of withdrawal online within your N26 App account settings under the "Legal" section. If you use this online feature, we will send you an acknowledgement of receipt of the withdrawal on a durable medium (e.g. by email), including its content and the date and time of its submission, without undue delay.

Section 2

Information to Initiate the Withdrawal Term

The Information in the meaning of Section 1 para. 2 encompasses the following:

General Information

1. the existence or absence of a right of withdrawal, as well as the conditions, information on how to exercise it, in particular the name and address of the person to whom the notice of withdrawal is to be addressed, and the legal consequences of the withdrawal, including information on the amount that the consumer must pay in the event of a withdrawal for the service provided to the extent that the consumer is liable to pay compensation for lost value (underlying provision: Section 357b of the

Civil Code);

2. the Member States of the European Union whose laws govern the payment service providers for purposes of their relations with the consumer before the conclusion of the contract;
3. details regarding payment and fulfillment;
4. any costs that may have been incurred, as well as an indication of possible taxes or costs not paid through or charged by the payment service provider;
5. any specific additional telecommunication usage costs for which the consumer is liable, if such additional costs are charged by the payment service provider;

Information on the Provision of Payment Services:

6. About the payment service provider:
 - a) the name and the address of its head office at which the payment service provider can be served legal notices, as well as any other addresses, including e-mail addresses, that are relevant for communication with the payment service provider;
 - b) the name and address for the service of legal notices of its agent or branch in the Member State in which the payment service is offered;
 - c) the supervisory authorities responsible for the payment service provider and the register kept by the *Bundesanstalt für Finanzdienstleistungsaufsicht* (federal financial supervisory authority) or any other relevant public register in which the payment service provider is registered as authorized, as well as its registration number or an equivalent identifier used in that register;
7. About the use of the payment service:
 - a) a description of the essential features of the respective payment service;
 - b) information or customer identifiers required for the proper initiation or execution of a payment order;
 - c) the manner in which consent is given for the initiation or execution of a payment order or for the withdrawal thereof (underlying provisions: Sections 675j and 675p of the Civil Code);
 - d) the time as of which a payment order is deemed to have been received (underlying provision: Section 675n para. 1 of the Civil Code);
 - e) a point in time specified by the payment service provider close to the end of a business day, after which a payment order received from the consumer is deemed to have been received on the following business day (underlying provision: Section 675n para. 1 clause 3 of the Civil Code);

- f) the maximum time within which the payment services are to be executed;
- g) a reference to the possibility of agreeing on caps to the amounts for which a payment instrument (such as a payment card, for instance) may be used (underlying provision: Section 675k para. 1 of the Civil Code);

8. About charges, interest, and exchange rates:

- a) all charges due from the consumer to the payment service provider, including charges based on the manner and frequency in which the required information is to be provided;
- b) a breakdown of these charges;
- c) interest rates and exchange rates applied, or if reference rates are used, the method for calculating the actual interest rates, as well as the relevant reference date and index or any other basis for determining the reference interest or exchange rates;
- d) the immediate effectiveness of changes to the reference interest or exchange rates based on the agreed reference interest or exchange rates without prior notification of the consumer (underlying provision: Section 675g para. 3 of the Civil Code);

9. About communications:

- a) the means of communication, the use of which for the transmission of information and reporting requirements is agreed, including the technical requirements for the consumer's equipment and software;
- b) information on the manner and frequency with which the information is to be provided or made available by the payment service provider before and during the contractual relationship, before the execution of payment orders commences or in the case of each individual payment order;
- c) the language or languages in which the contract is to be concluded and in which communications shall take place for the duration of the contractual relationship;
- d) a reference to the consumer's right to request, at any time during the term of the contract, that the contractual terms and conditions as well as the pre-contractual information on the provision of payment services referred to in this withdrawal policy be sent to them by mail or on another durable data medium;

10. About protective and remedial measures:

- a) a specification of the manner in which the consumer is to safely retain a payment instrument and to fulfill their obligation toward the payment service provider - or toward an entity designated by it - to report the loss, theft, misuse, or other unauthorized use of a payment instrument without undue delay after having become

aware of such an event (underlying provision: Section 675l para. 1 clause 2 of the Civil Code);

- b) a description of the secure procedure through which the payment service provider will inform the consumer in the event of suspected or actual fraud or in the event of security risks;
- c) the conditions under which the payment service provider reserves the right to block a payment instrument provided for by the Civil Code (underlying provision: Section 675k para. 2 of the Civil Code);
- d) information about the consumer's liability in the event of loss, theft, or any form of misuse of the payment instrument, including information on the maximum liability (underlying provision: Section 675v of the Civil Code);
- e) information on the payment service provider's liability in the event of unauthorized payment transactions (underlying provision: Section 675u of the Civil Code);
- f) information on the manner and the term within which the consumer must notify the payment service provider of unauthorized or faulty payment orders or transactions (underlying provision: Section 676b of the Civil Code);
- g) information about the payment service provider's liability in the event of unexecuted or of faulty or delayed initiation or execution of payment orders, as well as information about the payment service provider's obligation to investigate such non-executed or faultily executed payment order upon request (underlying provision: Section 675y of the Civil Code);
- h) the terms for the consumer's right to a refund in the event of an authorized payment transaction initiated by or through the payee (such as SEPA direct debits) (underlying provision: Section 675x of the Civil Code)

11. About amendments to the terms and upon the termination of the payment service framework contract:

- a) the duration of the payment service framework contract
- b) an indication of the consumer's right to terminate the contract;
- c) if applicable, a reference to the following clauses relevant to terminations:
 - aa) the agreed period of notice for the consumer's right to terminate the contract, which may not exceed one month (underlying provision: Section 675h para. 1 of the Civil Code),
 - bb) the agreed right of termination by the payment service provider with a period of notice of at least two months, subject to the assumption that the contract is

concluded for an indefinite period of time (underlying provision: Section 675h para. 2 of the Civil Code),

- cc) the consumer's right to terminate the contract without prior notice before a change to the contract proposed by the payment service provider takes effect, if the contract should have a clause under which the consumer's consent to the change would be deemed to have been given if not expressly rejected, provided that the payment service provider had informed the consumer of the consequences of refraining from objecting to the proposed change to the contract and of their right to terminate the contract (underlying provision: Section 675g para. 2 of the Civil Code);

- 12. The contractual clauses about the law applicable to the payment service framework contract and about the competent court;
- 13. A reference to the complaint procedures available to consumers in the event of alleged breaches by the payment service provider of its obligations (underlying provisions: Sections 60 through 62 of the Payment Services Supervision Act) and to extra-judicial redress procedures available to consumers (underlying provision: Section 14 of the Injunctions Act).

Section 3 Consequences of Withdrawal

In the event of an effective withdrawal, **the services received by both parties shall be reimbursed.**

If you should overdraw your account without having been granted overdraft facilities or if you should exceed the overdraft facilities granted, we shall not claim any costs or interest from you beyond the demand that you repay the overdrawn or excessively overdrawn amount, if we have not properly informed you about the terms and consequences of an overdraft in the absence of - or in excess of - granted overdraft facilities (such as the applicable debit interest rate and costs).

You are required to **pay compensation** for the value of services provided up to the time of withdrawal, if you were made aware of this legal consequence before submitting your contract declaration and expressly agreed that performance of services may commence before the end of the withdrawal period. If there is a requirement to pay compensation for lost value, this may imply that you are still required to fulfill the contractual payment obligations for the period up to the withdrawal. **Your right of withdrawal expires** prematurely if the contract was **completely performed by both parties at your express request** before you exercised your right of withdrawal. **Payments must be refunded within 30 days.** This term begins for you with the dispatch of your notice of withdrawal; for us it begins with the receipt thereof.

Special Instructions

Upon withdrawal of this contract, you are also released from any contract related to this contract (*zusammenhängender Vertrag*), if the related contract pertains to a service provided by us or by a third party on the basis of an agreement between us and such third party.

End of Withdrawal Policy Instruction

6. Language of contract and communication

6.1

English is the language of the contract and communication.

6.2

Information and declarations, which concern your contractual relationship with us on the basis of these General Terms and Conditions or which are related to the same, should be sent to the following address, unless specified otherwise in these General Terms and Conditions:

Email:

support@n26.com

Phone:

+49 (0) 30 364 286 880

Address:

N26 Bank SE, Voltairestraße 8, 10179 Berlin

6.3

Please always use your registered email address for submitting legally binding declarations with N26.

7. Use of account

We identify you as an account holder authorised for making payments with the help of payment authentication instruments.

7.1 Linked smartphone as authentication instrument

The combination of a smart phone that is initially linked to your account and has a personalised security feature is used as an authentication instrument. You can only release the payment transactions with this combination. You will receive detailed information about the linking of smart phones in the N26 Support Center.

7.2 Personalised security features

A unique combination of e-mail address and password, which you can set up yourself while opening an account and with which you can log on to the end user interfaces and set a PIN that enables you to release payment transactions upon request ("Personalised security feature") operates as personalised security feature. You can set this PIN yourself by following the process described in the N26 Support Center.

7.3 Credit transfers and direct debits

Credit transfer orders and direct debits can be issued exclusively in Euro to SEPA accounts. The general terms and conditions for credit transfers and payments by direct debit under the SEPA core direct debit scheme apply.

7.4 CASH26

The CASH26 feature enables you, the end Customer, to withdraw cash from your current account or deposit cash into your current account at branches of selected retail partner companies (e.g. supermarkets) in all supported countries. What countries are supported at the moment can be found in the CASH-Map within the N26 App. CASH26 will be available to you only if you are registered as a customer of one of the supported countries.

The feature is provided in cooperation with Viacash (viafintech GmbH) and payment service provider Grenke Bank AG. The applicable limits and conditions can be found in the "List of Prices and Services". N26 reserves the right to adjust these limits at any time. Barcodes that were generated by the Customer are valid for a limited period of time. Barcodes that have expired or have been deleted by the Customer can no longer be utilised for CASH26.

Because not all partner companies in the Viacash-network provide the CASH26 service, transactions may only be made in branches that are displayed in the "CASH-Map". The CASH-Map can be retrieved within the N26 App. For regulatory reasons, deposits and withdrawals may only be made by the respective account holder and not by any third parties. The final decision on the processing of deposits and withdrawals is dependent on the availability of cash in the respective branch.

The details on the fees and limits applicable to the withdrawal and deposit with CASH26 are included in the price list ("List of Prices and Services").

7.5 N26 Premium Memberships: N26 Go, N26 Smart, N26 Metal

Upon opening the Account or at a later moment, the Client has the right to upgrade to an "N26 Smart", "N26 Go" or "N26 Metal" premium account in accordance with the respective terms and conditions governing these Premium Accounts.

The purpose of these Premium Memberships is the provision of special benefits to the Premium Member. The respective contractual services of the N26 Bank SE ("N26") are expressly described in the Terms and Conditions of N26 for the respective Premium Membership.

7.6 N26 Insights

The Insights feature provides you with valuable insights that enable you to better understand your spending behaviour and feel in control of your financial life. It automatically sorts your transactions by categories (e.g., 'Household & Utilities') and gives you a balance overview for each category within a selected period. You can edit and assign individual transactions to another category and compare balances for different periods. Certain functions of the feature allow you to set spending budgets, in which case we will send you push notifications to help you achieve your goal. You can adjust the frequency of these reminders or turn them off in your account settings. For the purposes of enabling this feature, some personal data are processed. You can find more information in our Privacy Policy.

7.7 N26 Business

The purpose of N26 Business is the provision of a Business-MasterCard-debit card, which you can opt to use solely for business purposes. An N26 Business-MasterCard-debit card may only be applied for and used by self-employed natural persons (e.g. freelancers and the self-employed). Use of the Business-MasterCard-debit card is permitted solely for business expenses. Payments made with the card will be debited directly from your N26 account, which, when used in conjunction with the N26 Business-MasterCard-debit card, must also be used predominantly for business purposes.

N26 reserves the right to enquire at any time about the nature of the business use of the N26 Business card and account, as well as about your profession and industry. Independent goods traders are excluded from N26 Business.

7.8 N26 Premium Memberships: N26 Business Go, N26 Business Smart, N26 Business Metal

Upon opening the Account or at a later moment, the N26 Customer who has an N26 Business Account has the right to upgrade to a "N26 Business Smart", "N26 Business Go" or "N26 Business Metal" Premium Account in accordance with the respective terms and conditions governing these Premium Accounts.

The purpose of these Premium Memberships is the provision of special benefits to the Premium Member. The respective contractual services of the N26 Bank SE ("N26") are expressly described in the Terms and Conditions of N26 for the respective Premium Membership.

7.9 Top Up Feature by Stripe

The Stripe Top Up Feature ("Top Up Feature") is a service provided by our partner Stripe Payments Europe Ltd. ("Stripe"), The One Building, 1 Grand Canal Street Lower, Dublin 2, Ireland. The Top Up Feature provides an easy method for new customers to add funds to their accounts instantly. For this purpose personal data are transmitted to Stripe. You can find further information in our Privacy Policy. The Top Up Feature is provided to eligible customers and is entirely voluntary and free of charge.

7.10 Automatic Billing Program by Mastercard

The Automatic Billing Updater ("ABU") is a service provided by our partner Mastercard Europe S.A., 198/A Chaussée de Tervuren, 1410 Waterloo, Belgium ("Mastercard S.A."), which automatically updates information concerning your Mastercard to third party services you use and to which you subscribed with your Mastercard. By doing this ABU allows you to forgo an update of your account data to third parties by yourself. Thereby ABU aims to reduce preventable card-not-present declines by changes of stored payment account information. For this purpose your personal data are transmitted to Mastercard S.A. You can find further information in our Privacy Policy. The service is free of charge.

7.11 "Premium Member(s)"

For the purpose of these Terms and Conditions as well as for all other Terms and Conditions referenced to **"Premium Member(s)"**, **"Premium Membership"** as well as **"Premium Account"** shall include the respective N26 Account that has an active N26 Smart-, N26 Go-, N26 Metal- or an active N26 Business Smart, N26 Business Go- or N26 Business Metal-Membership. Each N26 Account Holder is only entitled to have one Premium Membership; the applicability of the General Terms and Conditions of another Premium Membership tier is

excluded. The Premium Member can only make use of those services that have been contractually granted to her / him in the respective General Terms and Conditions that have been agreed upon account opening or at a later stage. If the term "Premium Member" is also referred to in the General Terms and Conditions of a higher Premium Membership tier, this is only for better readability. A Premium Member with a N26 Smart membership does not benefit from the contractual services of a Premium Member with an active N26 Go or N26 Metal membership; a Premium Member with a N26 Go membership does not benefit from the contractual services of a Premium Member with an active N26 Metal membership. The preceding applies to the corresponding N26 Business account holders.

Further, "**Premium Card**" shall refer to the respective N26 MasterCard-debit-card as described in the respective General Terms and Conditions of the respective Premium Membership tier.

8. Non-disclosure of personalised security features; secure storage of authentication instrument

You must maintain secrecy concerning your personalised security features and safely store your authentication instrument. Personalised security features and authentication instrument must be protected from access by a third party.

9. Costs and payment

Remunerations for our services and any expenses to be reimbursed by you are provided in our pricelist, which can be retrieved via the N26 website. Insofar as the remunerations become due, we calculate these on a quarterly basis and debit them from your account at the end of every quarter, insofar as not otherwise disclosed or stated in the price list.

With respect to overdrafts from your account balance, we calculate the interest on the amount that has been overdrawn as per the stipulation of Clause 11.23, unless a separate overdraft credit agreement has been agreed between you and us.

9.1 Deposit Fee for Account Balance¹

9.1.1 The Customer pays a fee as set out in the List of Prices and Services for the custody of funds on the account ("Deposit fee").

9.1.2 The custody balance is calculated on the basis of the accurately calculated end-of-day balance, which is the sum of the balance on the main account and all Spaces ("Deposit balance"). The end-of-day balance contains all value dates posted until the end of the day according to the regulation of value dates. Correction bookings and reversal entries which the Bank is executing in retrospect are included in the calculation of the Custody fee.

9.1.3 The month is counted with 30 days, the year with 360 days.

9.1.4 The Deposit fee is calculated by the Bank retrospectively each month on the amount which exceeds the allowable deduction from the custody balance and only considering the days on which such limit has been

¹ Clause 9.1. only applies to customers who opened an N26 Bank account after 19.10.2020. The Deposit Fee is not charged in Portugal.

exceeded during the month of reference. The Deposit fee is rounded up on two decimal places in accordance with standard commercial practice.

9.1.5 Insofar as not otherwise disclosed the incurred Deposit fee becomes due on a current account with the issuing of the periodic balance statement, is reported on the balance statement and debited from the account.

9.1.6 In the case that the Bank has waived to levy a Deposit fee partly or totally, the Customer is not entitled to such a waiver prospectively.

9A. Collection costs [only applicable to customers residing in Belgium]

9A.1. All payments must be received by N26 no later than the due date. The amount owed by you is due from the due date. If the invoice or debit balance has not been paid in full or in part by the due date, you will receive a first free reminder. If the first free reminder is sent electronically (e.g. by email), the free reminder period of 14 calendar days starts on the calendar day following the day on which the reminder was sent. If the reminder is sent by post, the free reminder period of 14 calendar days starts on the third working day following the day on which the reminder was sent.

9A.2. If payment of the amount due is still not made after the free reminder, N26 may transfer the collection of the claim to a collection agency, lawyer or bailiff, in which case the maximum amounts below will be charged as a penalty clause:

<u>Outstanding amount</u>	<u>Applicable Collection Fees</u>
€ 150,- and below	€ 20,-
€ 150,01 - € 500,-	€ 30,- + 10% of the value of the outstanding amount above 150,00
€ 500,01 – and above	€ 65,- + 5% of the value of the outstanding amount above 500,00
	Maximum: € 2.000,-

In addition to these maximum costs, default interest will also be charged, not exceeding the interest rate increased by 8 percentage points as referred to in Article 5, second paragraph of the Act of 2 August 2002 on combating late payment in commercial transactions. This interest shall be calculated on the amount still due.

10. Costs for mobile radio and data transfer

You may incur additional costs for the data transfer depending upon the tariff agreed with your telecommunication provider. These costs must be borne by you and will be invoiced to you by the telecommunication provider.

11. Overdraft of the account and consequences

11.1 Account balance

Payment transactions are permitted only within the scope of the credit balance available on the account. Payment transactions initiated by you that exceed the credit balance available in the account can be rejected.

11.2 Interest for account overdraft

If you have overdrawn your account balance, we shall calculate the interest on the overdrawn amount ("Account overdraft interest"). Unless a separate overdraft credit contract has been concluded with us, the current rate of interest from the overdraft credit agreement is applicable for all overdrafts of your account up to the amount of overdraft limit granted.

If no overdraft credit contract has been concluded, we have agreed upon a variable borrowing rate ("account overdraft borrowing rate") for the overdrawn amount equal to 8.9 percentage points above the respectively applicable interest rate for main refinancing companies of the European Central Bank (hereinafter mentioned as "Reference interest rate"). No additional processing fee is charged.

The changes to the account overdraft interest rate depend upon the development of the reference interest rate. This reference interest rate is determined by the governing council of the European Central Bank and is published in its official interest rate statistics. The governing council of the European Central Bank is currently deliberating every 6 weeks as planned to whether the reference interest rate needs to be adjusted. The initial reference interest rate for the first change of the account overdraft interest rate is the reference interest rate, which was applicable on 1st November 2015 (0:00 hours). This rate is compared with the recently published reference interest rate.

If the recently published reference interest rate has increased by more than 0.25 percentage points as against the initial reference interest rate, then the change of the account overdraft interest rate is triggered and the account overdraft interest rate is increased by the difference. If the recently published reference interest rate is reduced by more than 0.25 percentage points as against the initial reference interest rate, the account overdraft interest rate is reduced by the difference. The change of the account overdraft interest rate becomes effective on the first calendar day of the next month following the publication of the reference interest rate that triggered the change of the account overdraft interest rate.

This likewise applies to further changes of the account overdraft interest rate, with the stipulation that the reference interest rate which was the basis of the last change of the account overdraft interest rate is used as initial reference interest rate.

The bank will inform the Customers at regular intervals regarding the adjusted account overdraft interest rate as well as the due date of the interest payments – if any – on the condition that the latter changes. You will be informed of any adjustments to the account overdraft interest rate.

Factors such as variations in the default risk of the Customer, bank ratings as well as the in-house cost calculation are considered in the adjustment of the account overdraft interest rate.

The interests are subsequently payable at the end of calendar quarter and are charged against the account.

12. Disclosure and notification obligations

12.1

You are obliged to correctly notify us regarding your personal data, in particular your name, address, date of birth, phone number and email address and provide prompt information to us about any changes to this end.

12.2

Immediately inform us regarding a loss or theft of your authentication instrument, your personalised safety features or a misuse or unauthorised use of the same. You can find the relevant contact information in the N26 Support Center on our website.

13. BLOCKING OF THE ACCOUNT AND THE CARD

13.1 Blocking of the account

If we have the reasonable suspicion that any unauthorised use of your account has occurred, we are permitted to block or limit its access. We will inform you promptly via e-mail, SMS or message in the App. Similarly, we will also block your account if you inform us about similar activities. We shall remove the block or the limitation if the reasons for blocking no longer exist.

13.2 Blocking of the card

You have the option to independently block and unblock your card in the end user interfaces. You can report your card as stolen, which will initiate a permanent deactivation of your card and a new card will be provided to you. You also have the option of calling our Customer support and request one of our employees to block your card upon successful authentication.

14. Data protection and bank secrecy

The registration, processing and utilisation of your personal data is conducted under strict maintenance of the applicable data protection laws and simultaneous protection of bank secrecy. You will find further details regarding these regulations in the N26 data privacy policy.

15. Changes to this general terms and conditions ("AGB")

15.1

Material changes (as defined in section (15.2) to these terms and conditions that affect services from the payment services framework agreement require an express or implied agreement with the user. All changes that do not affect the payment services framework agreement can be adjusted within the framework of the legal requirements and this clause.

15.2

Material changes are in particular all changes or additions that (i) affect the main performance obligations or (ii) change the contractual relationship so significantly that they are equivalent to the conclusion of a new contract.

15.3

Other changes, in particular editorial changes (as defined in clauses (15.5) and (15.6) of these Terms) are not considered to be material changes and can be made at any time at our reasonable discretion and will take effect:

15.3.1

if no specific effective date is specified: at the earlier of the following two dates: (i) when the User expressly accepts the changed Terms (e.g. in the User Interface) or (ii) when two (2) months have passed since the publication of such changes or additions (e.g. by sending a copy to the User), unless the User objects in accordance with clause (15.4); or

15.3.2

if a specific effective date (after the publication date) is specified: at the later of the two following dates: (i) the specified effective date and (ii) the earlier of the two following dates: (a) the User expressly accepts the amended terms and conditions (e.g. on the user interface) or (b) two (2) months after the publication of such changes or additions (e.g. by sending a copy to the User), unless the User objects in accordance with clause (15.4).

15.4

The User's consent is deemed to have been given if the User does not object in writing or electronically (e.g. by email or via the User Interface). The user is informed in the offer of changes that (i) his silence, if he does not object in writing or electronically (e.g. by email or via the user interface) within the period specified in section (15.3.1) or (15.3.2), will be deemed as consent to the changes, and that (ii) the user classified as a consumer has the right to terminate his contract and the contractually agreed services without notice until the changes come into effect.

15.5

Editorial changes are changes to clarify unclear provisions, adjustments to formats or fonts, provided that they do not result in significant changes within the meaning of section (15.2) of these terms and conditions.

15.6

Other changes that do not qualify as material changes are changes that may only be made at N26's reasonable discretion and subject to a risk assessment between the interests of N26 or the users as a whole and the interests of an individual user, i.e.

15.6.1

by offering new services that are either free of charge or cannot be used by the user or can only be used optionally;

15.6.2

there are no disadvantages for the user;

15.6.3

for reasons of clarity, e.g. due to changes in formats or fonts;

15.6.4

due to legal or tax requirements;

15.6.5

due to a change in service providers or contractors;

15.6.6

due to the need for uniform conditions due to the international expansion of N26;

15.6.7

due to the change or implementation of ancillary obligations; or

15.6.8

for other reasons comparable to those described above. Changes pursuant to this clause (15.6) may be made and come into force in accordance with clauses (15.3) and (15.4).

15.7

For users who qualify as entrepreneurs, significant changes may also be made and come into force in accordance with clauses (15.3) and (15.4).

16. Applicable law

(1) German Law

German law is applicable for the business relation between you and N26.

(2) Governing Law Clause

If you are a consumer with habitual residence in another country, the choice of German law does not deprive you of the protection afforded to you by provisions that cannot be derogated from by agreement under the law of your country of residence pursuant to Article 6(2) of Regulation (EC) No. 593/2008 (Rome I Regulation).

Supplementary provisions for users of the mobile app “n26” or the online interface that can be reached through <https://app.n26.com>

1. Preamble

These provisions (“Supplementary Provisions”) apply to the mobile application known as “N26” (the “App”) or the online interface that can be reached through my.n26.com (the “Online Interface”) in addition to the respective applicable conditions of use.

The App and the Online Interface primarily serve to administer your N26 current account, which makes it possible to process transactions using a payment card (the “Card”) licensed by MasterCard Inc. (“MasterCard”). In addition, we use the App and the Online Interface to market our own services and products, and will continually build up this product range in cooperation with further partners.

2. Object of regulation

2.1

These Supplementary Provisions apply to the services and products offered by N26. Furthermore, we would like to inform you about what personal data we collect, process and use.

2.2

The contract between you and N26 Bank comes into existence when we make it possible for you to log in to the App and the Online Interface (acceptance) according to the required data you give when registering (offer). Upon activation by us, a contract between you and N26 Bank comes into existence on the basis of these Supplementary Provisions. Before giving your offer, you have the opportunity, using the Back button on your browser or smartphone/tablet, as well as using control elements in the App or on the website, to change the data entered, or to completely abort the registration. Your contract with us will be concluded in German. You have the opportunity to call up the contractual provisions, inclusive of these Supplementary Provisions, when concluding the contract, and to store them in reproducible form. No separate storage of the contract text will be done by us.

3. Functionality

3.1

The App and the Online Interface serve for administration of the current account offered by us as well as for the rendering of any other services agreed to with you. The App and the Online Interface are 99% available. Availability indicates, with reference to the term of one (1) contractual year, the relation of the timeframe in which you were able to use the software through an existing Internet connection (plus the timeframe for which access on the basis of planned maintenance works or disturbances was not possible, which lay beyond the influence of N26, such as disturbances in the Internet or disturbances in an app store), in relation to the length of the total contractual year.

3.2

The App as well as the Online Interface is protected by the intellectual property laws, such as copyright law and trademark law. These rights in relation to you are exclusively reserved to us.

3.3

We grant you, exclusively to fulfil the purpose of our contractual relationship with you, the limited, non-exclusive, non-transferable and sub-licensable right, restricted to the period of your contractual relationship with us, to use the App and the Online Interface in accordance with the provisions. The right of use expires upon expiration of the term of the contract.

3.4

The User is not entitled to (i) rent, lease, lend, reproduce, resell or distribute the App or the Online Interface, or access to them; (ii) use the App or the Online Interface for the development of other services; (iii) activate or use the functionalities of the App or the Online Interface for which no rights of use have been granted to him or her; (iv) assign the usage rights to the App or the Online Interface to third parties, or grant third parties access to the App or the Online Interface; (v) alter, translate, reproduce, or decompile the source code of the App or of

the Online Interface, or investigate the functions thereof, outside of what may be legally mandatory in accordance with § 69d or § 69e UrhG (Urheberrechtsgesetz [Copyright Law]); and (vi) remove, conceal or alter legal information, in particular concerning industrial property rights or copyrights of N26.

4. Duties of the user

When using the App or the Online Interface, you are not allowed to perform any illegal actions or breach any applicable laws, in particular not to do the following: infringe industrial property rights, copyrights or intellectual rights of third parties; in your usage behaviour, make defamatory, racist or offensive statements, or undertake such actions; transmit contents which contain viruses, Trojan horses, spyware, adware, malware or other damaging or harmful programmes; distribute unwanted advertising (spam) or any other form of nuisance.

5. Compensation

Compensation for our products and services can be found on the price list, which can be retrieved via the N26 website. Provided nothing else is specified, no compensation will be due for the use of the App and the Online Interface.

6. Term of contract; Termination

6.1

Your contractual relationship with us runs indefinitely. It ends automatically with the end of your contract for the current account offered by us and administered with the App and the Online Interface, if nothing else has been agreed to with you. With the end of our contractual relationship with you, all of the rights of use granted to you in accordance with these Supplementary Provisions likewise end.

6.2 End User's right of termination

The termination rights of the Customer, Clause 18 of the General Business Conditions of N26; Basic Rules Governing the Relationship Between the Customer and the Bank are taken as agreed.

6.3 Termination right of N26

The termination rights of the Bank, Clause 19 of the General Business Conditions of N26; Basic Rules Governing the Relationship Between the Customer and the Bank are deemed to have been agreed.

For Customers with the right to a basic payment account according to §38 et seq. of the Payment Accounts Act (§ 38 ff. Zahlungskontengesetz – ZKG, only available in German), contrary to Sentence 1 the termination right in accordance with § 42 Paragraph 2 of the Payment Accounts Act (§ 42 Absatz 2 ZKG, only available in German) is taken as agreed with the end Customer.

7. Liability

7.1

We shall be liable without restriction for damages arising from injury to life, limb or health, which rests on a breach of duty by us, a legal representative, or auxiliary of us, which are caused by the absence of guaranteed

quality by us or malicious behaviour on the part of us, as well as for damages that were caused by premeditation or gross negligence on the part of us or of a legal representative or auxiliary of us.

7.2

In the event of a breach of significant contractual duties due to gross negligence, we shall be liable except in the cases listed in Clauses 9.1 and 9.3, with the amount to be limited to foreseeable damages typical under the contract. Significant contractual duties are abstractly those duties whose fulfilment makes it possible in the first place to implement a contract in orderly fashion, and upon whose observance the contractual parties may regularly rely.

7.3

Liability under the product liability law (*Produkthaftungsgesetz*) remains unaffected.

7.4

Otherwise liability on the part of N26 is excluded.

8. Set-off

You can only set off our claims with undisputed or legally established counter-claims.

9. Amendment of the supplementary provisions

9.1

We will inform you about an amendment before the time at which the amendments become effective by email ("amendment offer"). The amendment offer shall only become effective upon the Customer's consent.

9.2

For an amendment of the price list referenced in Clause 5 of these Supplementary Provisions, Clause 12.1 of these Supplementary Provisions applies accordingly.

10. Miscellaneous

For these Supplementary Provisions, German law applies to the exclusion of international private law. In the course of business with consumers inside the European Union, the law at the place of residence of the consumer can also be applied, if mandatory applicable consumer-related provisions are concerned.